

2. 9:00 AM CASE NUMBER: C25-03287
CASE NAME: JOSEPH WAINAUSKAS VS. DAVE & BUSTER'S MANAGEMENT, LLC
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 10. If the tentative ruling is uncontested, this CMC is continued to December 4, 2026 at 8:30 a.m. in Dept. 16. The Parties are ordered to meet and confer to discuss ADR and to file a CMC statement.

3. 9:00 AM CASE NUMBER: C25-03352
CASE NAME: LUIS GOMEZ PASTRANA VS. DCS TRANSPORTATION
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 10. This CMC is continued to September 16, 2026 at 9:00 a.m.

4. 9:00 AM CASE NUMBER: MSC21-00659
CASE NAME: TAJ LOCKETT VS BROKER SOLUTIONS INC
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTEROGS NO. 1-3**
FILED BY: LOCKETT, TAJ
TENTATIVE RULING:

Summary

Plaintiff Taj Lockett ("Plaintiff" or "Lockett"), individually and in her representative capacity, filed this Motion to Compel Defendant New American Funding LLC's ("Defendant" or "NAF") Further Responses to Special Interrogatories Nos. 1-3 and for sanctions in the amount of \$14,310. As set forth below, this motion is **granted** in part and **denied** in part.

Background

Plaintiff Taj Lockett commenced this Private Attorneys General Act ("PAGA") action against her former employer New American Funding, LLC ("NAF"), alleging systematic violations of Labor Code section 2751(a). That statute requires commission contracts to be in writing and set forth the method by which commissions are computed and paid. Lockett contends that NAF's commission plans fail to disclose the "lean in" policy, whereby loan officers may reduce customer costs by accepting a commensurate reduction in their commissions. She seeks to represent a class of "aggrieved employees" defined as all persons employed by NAF in California as loan officers or their functional equivalent from September 6, 2019 to the present, estimated at 3,068 individuals.

Following the United States Supreme Court's decision in *Viking River Cruises, Inc. v. Moriana*, [citation omitted] the parties arbitrated Lockett's individual PAGA claims. In August 2024, Arbitrator Brian C.

Walsh issued a final award finding in Lockett's favor on her individual claim, determining that while NAF's corporate policy treated loan originator contributions as voluntary, the "actual policy in NAF's Brentwood office was contrary to those corporate expectations." The arbitrator emphasized that "each NAF branch (via its regional manager or SVP) has the autonomy to manage the pricing strategy," suggesting that practices varied by location. The Court confirmed this award in January 2025, leaving only Lockett's representative PAGA claims for adjudication.

The instant discovery dispute concerns Lockett's First Set of Special Interrogatories ("SROG"), served in July 2021. Special Interrogatory No. 1 seeks the names and contact information (including personal email, address, and telephone numbers) for all 3,068 loan officers. Special Interrogatories Nos. 2 and 3 seek, for those same individuals, their job titles, employment dates, work locations, and loan origination data, including the number of loans originated and the number on which they "leaned in." After initially objecting, NAF served supplemental responses in December 2025 providing this information for only three individuals (besides Lockett) who were supervised by Lockett's supervisor, Shawn Guaaun, at the Brentwood location. NAF contends that the arbitration award limits the scope of the representative action to employees supervised by Guaaun, arguing that the award establishes that Labor Code section 2751 violations depend on individual manager practices that vary across the state.

Lockett moves to compel full responses subject to a *Belaire-West* notice procedure (whereby a neutral notice is sent to potential class members with an opportunity to opt out of having their contact information shared), offering to split the notice costs. She argues that NAF's narrow interpretation is flatly inconsistent with *Williams v. Superior Court* (2017) 3 Cal.5th 531, which holds that a PAGA plaintiff need not prove the alleged violations or establish a uniform companywide policy as a prerequisite to obtaining statewide discovery. She contends that the arbitrator's role was limited to adjudicating her individual claims, and the Court retains jurisdiction over the representative claims, which allege a systematic, statewide failure to include the "lean in" method in written commission contracts.

NAF opposes the motion, arguing that PAGA standing requires a plaintiff to represent only those who suffered the same violations, and that the arbitration award conclusively established that any section 2751 violation was limited to the Brentwood office under Guaaun's supervision. NAF asserts that *Williams* does not entitle Lockett to unfettered access to over 3,000 employees' private information, noting that the *Williams* Court explicitly stated that discovery limits "need not be all or nothing." NAF further argues that SROGs 2 and 3 are contingent on responses to SROG 1, and since NAF identified only three individuals in its SROG 1 response, it fully answered SROGs 2 and 3 as to those three individuals. NAF also contends that it has already produced aggregate data sufficient to determine the percentage of loan officers who "leaned in," making individual data duplicative, and that inside loan officers (consumer direct agents) should be excluded because they are ineligible to "lean in" due to the nature of their work.

Analysis

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare*

Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. The principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Objections and Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, "without substantial justification, an unmeritorious objection to discovery, " to make "an evasive response to discovery" and to make or oppose "unsuccessfully without substantial justification a motion to compel or to limit discovery," or to fail to meet and confer to resolve discovery disputes informally.

CCP Section 2023.030(a) provides: "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or an attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct."

Boilerplate objections fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e),(f) and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220 (b)(c).

It is wholly improper for a party to respond to discovery by making unmeritorious objections and then refusing to identify responsive documents and producing them. California's Discovery act was "intended to take the 'game' element out of trial preparation," considering that "a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise." (*Greyhound Corp. v. Super. Court In and For Merced County* (1961) 56 Cal.2d 355).

Interrogatories

The grounds set forth in Cal. Code of Civ. Proc. § 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are “incomplete or evasive,” or an “objection to an interrogatory is without merit or too general.” When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Meet and Confer Requirements

The parties to a discovery dispute are required to meet and confer, a reasonable and good faith attempt, to informally resolve any dispute concerning discovery. See Cal. Code Civ. Proc. §§ 2016.040, See *Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (Frye) (2022) 84 Cal.App.5th 127, 138.

In addition to the statutory requirements that obligate counsel to meet and confer on a discovery motion, Contra Costa County Superior Court local rules require the same. See L.R. 2.121(e). Additionally, the Court’s local rules states that motions “should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved.” L.R. 2.122(c). Cal. Code of Civ. Proc. § 2016.040 requires, at a minimum, attorneys to talk in person, by telephone, or by video conference to work out issues, rather than just send written correspondence with an invitation to “call me if you should have any further questions or comments,” which Courts have found to be insufficient. *Jovita Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 429, 431-433.

Here, the record presented to the Court demonstrates that Counsel met and conferred on the outstanding issues by letter on December 23, 2025 and by telephone on January 9, 2026, complying with the requirements of the statute.

In analyzing the forgoing authorities, the Court finds that Plaintiff’s motion is justified but responses must be limited based on significant limitations from the arbitration award’s factual findings. The Court finds that Plaintiff’s strongest argument rests on *Williams v. Superior Court, supra*, which remains binding California precedent establishing that PAGA plaintiffs are entitled to broad, statewide discovery to investigate whether Labor Code violations occurred, without first proving their case or demonstrating a uniform policy.

The fact that her individual claims were arbitrated separately from her representative claims supports Plaintiff’s position that the Court, not the arbitrator, retains jurisdiction over the scope of the representative action. The Court finds that Lockett’s willingness to employ a *Belaire-West* procedure, which balances the need for notice to aggrieved employees against privacy concerns overcomes NAF’s argument that producing contact information for 3,068 individuals is unduly burdensome or invasive, as the procedure allows employees to opt out of disclosure.

The Court notes, however, that Plaintiff’s position is materially weakened by the arbitration award’s specific finding that NAF’s branch offices operate with autonomy regarding pricing strategies, and that the only proven violation occurred at the Brentwood office. While *Williams* provides a broad discovery standard, courts may still tailor discovery where the factual predicate for a statewide violation is weak. The arbitrator’s emphasis on branch-level autonomy provides NAF with a colorable argument that statewide discovery merely amounts to an unjustified fishing expedition. Additionally, Plaintiff’s inclusion of inside loan officers (who may not have the same commission structure or ability to “lean

in”) presents a vulnerability, as NAF may assert these employees fall outside the definition of “aggrieved employees” who suffered the alleged violation.

The Court finds that NAF’s opposition is substantially justified but potentially overreaches in its interpretation of the arbitration award’s preclusive effect. NAF’s strongest argument is that the award’s factual findings regarding branch autonomy and the limited nature of the violation at Brentwood provide a reasonable basis to limit discovery geographically and hierarchically. The argument that SROGs 2 and 3 are properly limited to the scope of SROG 1 has technical merit under the interrogatories’ plain language. NAF also makes a compelling relevance argument regarding inside loan officers, as Lockett has not demonstrated that these employees were subject to the same commission plan or eligible to “lean in.”

After considering the position of the Parties, and applying the relevant statutory and decisional authorities, the Court finds good cause to make the following findings and orders.

Ruling

1. Plaintiff’s Motion to Compel further answers to Special Interrogatory No. 1 is **granted**. Defendant shall provide further response to include and identify all outside loan officers or those positions actually eligible to participate in the “lean in” program and excludes inside consumer direct agents who could not have suffered the alleged violation, subject to a *Belaire-West* opt-out procedure. Defendant’s objections are **overruled**.
2. Plaintiff’s Motion to Compel further answers to Special Interrogatory No. 2 is **granted**. Defendant shall provide further response to the subparts of this interrogatory to include and identify all outside loan officers or those positions actually eligible to participate in the “lean in” program and excludes inside consumer direct agents who could not have suffered the alleged violation, subject to a *Belaire-West* opt-out procedure. Defendant’s objections are **overruled**.
3. Plaintiff’s Motion to Compel further answers to Special Interrogatory No. 3 is **granted**. Defendant shall provide further response to the subparts of this interrogatory to include and identify all outside loan officers or those positions actually eligible to participate in the “lean in” program and excludes inside consumer direct agents who could not have suffered the alleged violation, subject to a *Belaire-West* opt-out procedure. Defendant’s objections are **overruled**.
4. Plaintiff’s request for sanctions are **denied** given the substantial justification for NAF’s position and the novelty of the post- *Viking River* discovery ruling.
5. The Parties shall meet and confer to implement the intent of this Court’s ruling and take necessary steps to provide responses in compliance with applicable law, including the *Belaire-West* notice procedures. Respondents who opt out shall not be listed in responses.
6. Further responses shall be provided by NAF no later than fifteen (15) days from the date of the expiration of the *Belaire-West* opt out date, subject to a stipulation and proposed order

extending the response date.

7. Plaintiff's counsel is ordered to prepare and e-file a proposed order conforming to the foregoing no later than five (5) days from the date of this hearing.

5. 9:00 AM CASE NUMBER: MSC22-00343
CASE NAME: JOEL ROBLES VS. GLOBAL SECURITY MANAGEMENT AGENCY INC A CALIFORNIA CORPORATION

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 20. Since no appearance is required, and Line 20 seeks final approval of a class action and PAGA settlement, this CMC is vacated.

Law & Motion

6. 9:00 AM CASE NUMBER: C24-00143
CASE NAME: SALVADOR MAGALLON VS. SEQUENTIAL ENVIRONMENTAL SERVICES, LLC, AN OREGON LIMITED LIABILITY COMPANY

PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT AGREEMENT

FILED BY: MAGALLON, SALVADOR

TENTATIVE RULING:

Summary

Plaintiff Salvador Magallon ("Plaintiff") filed his motion for preliminary approval of the class action and PAGA litigation against Defendant Mahoney Environmental Solutions, LLC ("Defendant"), collectively referred to as the "Parties." The Motion is granted as set forth herein. No appearance is required at the August 5, 2026 hearing, provided that Plaintiff's counsel complies with the proposed order.

Background

The Parties have reached a class action and PAGA settlement to resolve claims brought by Plaintiff against Defendant. The Settlement Class is defined as: (1) non-exempt employees employed by Mahoney Environmental Solutions, LLC in California from January 1, 2024 to August 10, 2025; and (2) non-exempt employees employed by SeQuential Environmental Services, LLC (now known as Mahoney Environmental Solutions, LLC) in California from January 18, 2020 to August 10, 2025. The "Aggrieved Employee" group for PAGA purposes includes non-exempt employees employed during the PAGA Period from January 18, 2023 to August 10, 2025. Defendant estimates approximately 166 Class Members and 108 Aggrieved Employees are covered by this Settlement.

Defendant has agreed to pay a total Gross Settlement Amount of \$555,000.00 on a non-reversionary basis to settle and release all claims alleged in the operative complaint, including claims for failure to pay minimum wages and overtime, meal and rest period violations, failure to provide accurate wage